

26NNCV00030 26NNCV00030

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Case Number: 26NNCV00030 Hearing Date: August 28, 2026 Dept: B

Hon. Victor Avila, Dept B

Demurrer to Cross-Complaint; Motion to Strike

Hearing Date: 8/28/26

CASE NO.: 26NNCV00030

CASE NAME: William Yaik Quen Fong by and through his
successors-in-interest, Margaret Fong et al. v. TAG-2 Medical Investment Group,
LLC

Moving Party: Defendant TAG-2 Medical Investment Group

Responding Party: Plaintiffs William Yaik Quen Fong (Decedent), by and
through his successors-in-interest, Margaret Fong, Sue Fong, Mimi Fong, and
Kristin Fong

Notice: Sufficient

Ruling: Demurrer

OVERRULED in part, SUSTAINED in part. Motion to Strike GRANTED in part, DENIED
in part.

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of
Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the

Tentative Ruling, no argument is requested AND ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is an elder abuse and wrongful death case. On January 2, 2026, plaintiffs William Yaik Quen Fong (Decedent), by and through his successors-in-interest, Margaret Fong, Sue Fong, Mimi Fong, and Kristin Fong (collectively Plaintiffs) filed a complaint against defendant Tag-2 Medical Investment Group, LLC, d.b.a Sunny Village Care Center (Defendant) and Does 1 through 150, inclusive.

On March 26, 2026, Plaintiffs filed a first amended complaint (FAC), alleging four causes of action: (1) elder abuse/neglect; (2) negligence; (3) violation of patient's rights; and (4) wrongful death.

On May 14, 2026, Defendant filed the instant motion to strike and on May 18, 2026, Defendant filed the instant demurrer.

On August 17, 2026, Plaintiffs filed an opposition to both motions. On August 21, 2026, Defendant filed replies to both motions.

LEGAL STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not

consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.)

Further, the court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all, or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 [court shall not “sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment”]; *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1037 [“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”]; *Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768 [“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

DISCUSSION

Meet and Confer

Code of Civil Procedure section 430.41

requires that before the filing of a demurrer the moving party “shall meet and confer in person or by telephone” with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be

reached that would resolve the objections to be raised in the demurrer. (Code Civ. Proc. § 430.41(a).) The parties are to meet and confer at least

five days before the date the responsive pleading is due. (Code Civ. Proc. § 430.41(a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc. § 430.41(a)(3).)

Defendant's counsel declares they met and conferred with Plaintiffs' counsel on April 22, 2026, via telephone and were unable to come to an agreement. (Tran Decl., ¶¶ 3-4.) Plaintiffs do not address meet and confer efforts.

Based on declaration of Defendant's counsel, the parties have complied with meet and confer requirements.

Demurrer

Defendant demurrers

to the first cause of action for elder abuse/neglect, third cause of action for violation of resident's rights, and fourth cause of action for wrongful death on the grounds that Plaintiffs fail to state facts sufficient to constitute a cause of action. (Dem., p. 2.)

First Cause of
Action: Elder Abuse/Neglect

To state a cause of action for elder abuse and neglect, Plaintiffs must allege "[p]hysical abuse, neglect, abandonment, isolation, abduction, or other treatment with resulting physical harm or pain or mental suffering." (Welf. & Inst. Code, § 15610.07, subd. (a)(1).)

Acts which are prohibited under the Elder

Abuse Act provisions of the Welfare and Institute Code "do not include acts of simple professional negligence but refer to forms of abuse or neglect performed with some state of culpability greater than mere negligence." (Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 781.) To constitute abuse and neglect within the meaning of the Elder Abuse Act, thereby triggering the enhanced remedies available under the Act, Plaintiffs "must demonstrate by clear and convincing evidence that defendant is guilty of something more than negligence; he or she must show reckless, oppressive, fraudulent, or malicious conduct," with recklessness referring "to a subjective state of culpability

greater than simple negligence, which has been described as a “deliberate disregard” of the “high degree of probability” that an injury will occur,” and “[o]ppression, fraud and malice [involving] intentional or conscious wrongdoing of a despicable or injurious nature.” (Sababin v. Superior Court (2006) 144 Cal.App.4th 81, 88-89, quotation marks omitted.)

Defendant argues that Plaintiffs have failed to plead each element of an elder abuse claim with the requisite particularity and factual support. (Dem., p. 11.) Specifically, Defendant argues that Plaintiffs have failed to plead facts amounting to egregious abuse or neglect, and at minimum make allegations of substandard performance. (Ibid.) Defendant cites Carter v. Prime Healthcare Paradise Valley in which the court concluded that the plaintiff had not pled facts which amount to neglect with sufficient particularity. (Dem., p. 12; Carter v. Prime Healthcare Paradise Valley (2011) 198 Cal.App.4th 396, 410.) Further, Defendant argues that Plaintiffs does not identify any acts or omissions amounting to alleged misconduct. (Dem., p. 14.) Lastly, Defendant argues that Plaintiffs fail to plead sufficient facts to show that Defendant acted with malice, oppression, fraud, or recklessness and additionally have not alleged any involvement of an officer, director, or managing agent of Defendant which is required. (Dem., pp. 15-18.)

In opposition, Plaintiffs argue that they have pled neglect consistent with Welfare and Institutions Code section 15610.57, which defines neglect as a failure to exercise a degree of care a reasonable person would exercise and includes a failure to assist in personal hygiene or provide food, clothing, shelter, or medical care. (Opp., pp. 9-10.) Plaintiffs argue they have pleaded recklessness consistent with the Code. (Opp., p. 10.) Plaintiffs argue that the deliberate disregard of Decedent's care has been sufficiently pled. (Opp., p. 11.) Further, Plaintiffs argue that they have sufficiently alleged involvement by a managing agent in the alleged misconduct. (Opp., 14.) Lastly, Plaintiffs emphasize that pleadings must be construed liberally. (Opp., p. 15.)

In reply, Defendant reiterates that statutory causes of action require heightened pleading and argues that Plaintiffs have failed to meet that standard. (Reply, p. 3.) Defendant argues that Plaintiffs fails to allege how and on what matter Defendant failed to provide the required service. (Reply., p. 4.) Moreover, Defendant argues that none of Plaintiffs' allegations amount to recklessness. (Reply., pp. 4-5.) Lastly, Defendant

reiterates that Plaintiffs has failed to identify with specificity any conduct in which a director, managing agent, or officer was involved in the alleged misconduct. (Reply., pp. 7-8.)

Here, Plaintiffs have stated facts that meet the heightened standard of pleading for elder abuse and neglect. (Covenant Care, supra, 32 Cal.4th at p. 790 [“statutory causes of action must be pleaded with particularity”].) Plaintiffs have identified ways in which Defendant and their staff allegedly neglected Decedent’s care. (FAC, ¶¶ 47-52.) Further, Plaintiffs have alleged that director, managing agent, or officers were involved in Decedent’s care plan and thus involved in the misconduct. (FAC, ¶¶ 56-57.) Whether or not Defendant’s conduct amounts to recklessness is a factual inquiry. Thus, Plaintiffs has sufficiently stated a cause of action for elder abuse or neglect.

Accordingly, Defendant’s demurrer to the fourth cause of action is OVERRULED.

Third Cause of Action: Violation of Resident’s Rights

“A current or former resident or patient, or the legal representative, personal representative, or successor in interest of a current or former resident or patient, of a skilled nursing facility...may bring a civil action against the licensee of a facility who violates any rights of the resident or patient as set forth in Section 72527 or 73523 of Title 22 of the California Code of Regulations, or any other right provided for by federal or state law or regulation.” (Health & Saf. Code, § 1430(b)(1).) Section 72527 lists about 27 patient rights protected under the statute. (Cal. Code Regs., tit. 22, § 72527(a).)

Defendant argues that Plaintiffs fails to plead facts with particularity and identify a violation of any of these specific rights. (Dem., 19.) Defendant argues that Plaintiffs makes conclusory and factually devoid allegations. (Ibid.)

In opposition, Plaintiffs argue that they have identified the specific rights Defendant has violated and the specific regulations conferring each of those rights. (Opp., p. 16.) Plaintiffs list several of the rights alleged in the FAC and how those rights were violated. (Ibid.)

In reply, Defendant argues that Plaintiffs have not pled facts to support the specific rights they allege were violated and instead rely on conclusory allegations. (Reply, pp. 8-9.) Defendant reiterates that statutory claims must be pled with specificity. (Ibid.)

Generally, “[w]he[n] a party relies for recovery upon a purely statutory liability it is indispensable that he plead facts demonstrating his right to recover under the statute. The complaint must plead every fact which is essential to the cause of action under the statute.” (Baskin v. Hughes Realty, Inc. (2018) 25 Cal.App.5th 184, 207.) Further, when “statutory remedies are invoked, the facts ‘must be pleaded with particularity.’” (Hawkins v. TACA Internat. Airlines, S.A. (2014) 223 Cal.App.4th 466, 478.)

Here, Plaintiffs sufficiently identifies each right of Decedent’s they allege Defendant has violated; however, they do not clearly allege how Defendant has violated those rights. Relief under this cause of action is statutory, so Plaintiffs must present specific facts to support relief under the statute, and here Plaintiffs has not provided specific facts showing how Defendant has violated the identified rights of Decedent. Since the Court believes defects can be cured through amendment, leave to amend is granted.

Accordingly, demurrer as to the third cause of action is SUSTAINED with leave to amend.

Fourth Cause of Action: Wrongful Death

“The elements of a cause of action for wrongful death are a tort, such as negligence, and resulting death.” (Lopez v. City of Los Angeles (2011) 196 Cal.App.4th 675, 685.)

Defendant argues that Plaintiffs has not sufficiently plead how Defendant’s conduct caused Decedent’s death. (Dem., p. 20.) Further, Defendant argues that Plaintiffs does not allege facts which demonstrate Decedent had a more than 50% chance of survival had Defendant complied with the requisite standard of care. (Ibid.) Defendant argues that the FAC cites septic shock with underlying causes of COVID-19 and pneumonia as cause of death without any reference to Defendant’s conduct. (Ibid.)

In opposition, Plaintiffs argue that they have adequately pled negligence resulting in death of Decedent to support a claim of wrongful death. (Opp., p. 17.) Further, Plaintiffs argue that they have sufficiently pled a causal relationship between the negligence and death. (Ibid.) Plaintiffs argue that heightened pleading is required in circumstances where a causal relationship between neglect and death is not readily apparent, however here custodial neglect producing dehydration, skin breakdown, and infection that progressed to sepsis and death, naturally give rise to an inference of causation of wrongdoing. (Opp., p. 18.)

In reply, Defendant reiterates that Plaintiffs fail to plead the element of causation with specificity required of a wrongful death claim because the present circumstances would not ordinarily give rise to death. (Reply, p. 9.)

“[W]hen...the pleaded facts of negligence and injury do not naturally give rise to an inference of causation... the plaintiff must allege facts, albeit as succinctly as possible, explaining how the conduct caused or contributed to the injury. (Bockrath v. Aldrich Chemical Co., Inc. (1999) 21 Cal.4th 71, 78.)

Here, Plaintiffs pleads that the alleged negligence of Defendant, allegedly including failure to address skin breakdown, malnutrition, dehydration, and infection leading to sepsis caused his death. (FAC, ¶¶ 25-62, 66-74.) This alleged conduct presents a clear causal relationship between negligence and injury if the allegations are taken as truth. Thus, heightened specificities are not required in the pleading. In addition to causation, Plaintiffs have sufficiently pled negligence which is not in dispute here.

Accordingly, Defendants demurrer as to the fourth cause of action for wrongful death is OVERRULED.

Motion
to Strike

Plaintiffs move to strike prayers for attorney's fees and punitive damages in the FAC. (Mot., p. 2.)

Attorney's Fees

An award of attorney's fees is proper when authorized by contract, statute, or law. (Code Civ. Proc., §§ 1032, subd. (b), 1033.5, subd. (a)(10).)

Defendant

argues that Plaintiffs may not recover attorney's fees and costs for elder abuse pursuant to Welfare and Institutions Code section 15657 because Plaintiffs have not sufficiently pled that Defendant acted with recklessness, oppression, fraud, or malice in the commission of the alleged abuse. (Mot., pp. 14-16.) Additionally, Defendant argues that Plaintiffs may not recover attorney's fees for violation of resident's rights because Plaintiffs have not sufficiently pled the cause of action in the first place. (Mot., p. 19.)

In opposition, Plaintiffs argue that they are entitled to attorney's fees and punitive damages under statute. (Opp. Strike, p. 3.) Plaintiffs argue that they are entitled to all remedies authorized in section 15657 for elder abuse. (Ibid.) Plaintiffs also argue that they are entitled to attorney's fees pursuant to Code of Civil Procedure section 1021.5.

In reply, Defendant argues that Plaintiffs are not entitled to attorney's fees under section 1021.5 because the statute awards attorney's fees in civil actions which result in the enforcement of an important right affecting public interest and that benefit was conferred on the public. (Reply Strike, p. 6.) Defendant argues that here the only beneficiaries are Plaintiffs, who are the successors of Decedent. (Reply Strike, p. 7.) Defendant argues that this is a one-off case based on the treatment of a single nursing facility resident and not one brought as a representative action. (Ibid.)

Regarding the cause of action for Elder

Abuse, "[i]f it is proven by clear and convincing evidence, or by a preponderance of the evidence ...that a defendant is liable for...neglect as defined in Section 15610.57... and that the defendant has been guilty of recklessness, oppression, fraud, or malice in the commission of this abuse...the court shall award reasonable attorney's fees and costs." (Welf. & Inst. Code, § 15657(a).) Regarding violation of residents rights, a party "shall be liable for up to five hundred dollars (\$500) for each violation, and for costs and attorney's fees." (Health & Saf. Code, § 1430(b)(1)(A).)

Here, because Plaintiffs have sufficiently stated the first cause of action for elder abuse, they may seek attorney's fees pursuant to statute. However, since Plaintiffs have not sufficiently stated a cause of action for violation of residents rights, they cannot seek attorney's fees under Health and Safety Code section 1430. (See ruling on Demurrer above.)

Pursuant to Code of Civil Procedure

section 1021.5, "a court may award attorneys' fees to a successful party against one or more opposing parties in any action which has resulted in the enforcement of an important right affecting the public interest if: (a) a significant benefit, whether pecuniary or nonpecuniary, has been conferred on the general public or a large class of persons, (b) the necessity and financial burden of private enforcement, or of enforcement by one public entity against another public entity, are such as to make the award appropriate, and (c) such fees should not in the interest of justice be paid out of the recovery, if any." (Code Civ. Proc., § 1021.5.)

Here, Plaintiff's action is not seeking a benefit to be conferred on the general public. Rather, Plaintiffs action is based on the alleged wrongful conduct surrounding the care of one resident at Defendant's facility. Plaintiffs have not brought an action on behalf of several residents and do not seek a benefit to be bestowed upon a large class of people.

Accordingly, Plaintiffs motion to strike prayer for attorney's fees pursuant to Welfare and Institutions Code § 15657(a) is DENIED. However, Plaintiff's motion to strike prayer for attorney's fees pursuant to Code of Civil Procedure § 1021.5 and Health and Safety Code § 1430(b) is GRANTED.

Punitive Damages

Punitive damages may be recovered upon a proper showing of malice, fraud, or oppression. (Civ. Code, § 3294, subd. (a).) "Malice" is defined as conduct intended to cause injury to a person or despicable conduct carried on with a willful and conscious disregard for the rights or safety of others. (Turman v. Turning Point of Cent. Cal., Inc. (2010) 191 Cal.App.4th 53, 63.) "Oppression" means despicable conduct subjecting a person to cruel and unjust hardship, in conscious disregard of the person's rights. (Ibid.) "Fraud" is an intentional misrepresentation,

deceit, or concealment of a material fact known by defendant, with intent to deprive a person of property, rights or otherwise cause injury. (Ibid.) Conclusory allegations, devoid of any factual assertions, are insufficient to support a conclusion that parties acted with oppression, fraud or malice. (Smith v. Superior Court (1992) 10 Cal.App.4th 1033, 1042.)

Defendant argues that Plaintiffs have not plead facts necessary to establish oppression, fraud, or malice. (Mot., pp. 9, 11.) Defendant argues that Plaintiffs have at most plead negligence or gross negligence which does not support punitive damages. (Mot., p. 9.) Lastly, Defendant argues that Plaintiffs cannot recover punitive damages from Defendant because they must show oppression, fraud, or malice on the part of an agent, officer, or director and have not alleged any such conduct or involvement in the FAC. (Mot., p. 12.)

In opposition, Plaintiffs argue that they are entitled to punitive damages pursuant to section 3294. (Opp. Strike, p. 3.) Plaintiffs argue that they have shown malice through several instances of a willful disregard for Decedent in his care. (Opp. Strike, pp. 4-5.) Further, Plaintiffs argue that they have adequately pled involvement of a managing agent to support seeking punitive damages from an employer. (Opp. Strike, p. 5.)

In reply, Defendant reiterates that Plaintiffs have not pled facts showing oppression, fraud, or malice and have similarly failed to allege involvement of an agent sufficient to seek punitive damages from an employer. (Reply Strike, pp. 3-6.)

“An employer shall not be liable for [punitive damages], based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice.” (Civ. Code, § 3294(b).) “With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (Ibid.)

Here, Plaintiffs have alleged that the agents of Defendant displayed malice through willful disregard for Decedent's health. Plaintiffs have alleged that Defendant, and their agents knew that

ignoring their obligations to provide basic care for Decedent including infection prevention, wound development, deterioration, and injury would create a high probability of suffering and severe injury but neglected Decedent anyway. (FAC, ¶ 53.) Thus, Plaintiffs have alleged conduct amounting to malice and may recover punitive damages if the allegations ring true.

Accordingly, Defendant's motion to strike is DENIED as to punitive damages.

CONCLUSION AND ORDER

Defendant TAG-2
Medical Investment Group, LLC's demurrer as to the first cause of action for elder abuse/neglect is OVERRULED.

Defendant's
demurrer as to the third cause of action for violation of patient's rights is SUSTAINED with leave to amend.

Defendant's
demurrer to the fourth cause of action for wrongful death is OVERRULED.

Defendant's
motion to strike prayer for attorney's fees pursuant to Welfare and Institutions Code § 15657(a) is DENIED.

Defendant's
motion to strike prayer for attorney's fees pursuant to Code of Civil Procedure § 1021.5 and Health and Safety Code § 1430(b) is GRANTED.

Defendant's motion to strike punitive damages is DENIED.

MOVING PARTY shall submit a proposed order consistent with this ruling within 10 days from the date of this ruling and provide notice.